

Tribhuwan Shivhare v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 August 2022 · Writ - C No. 20631 of 2022 · WRIT - C No. 20631 of 2022 · **Writ disposed; liberty to file para 6.8 objection with stay of coercive action.**

HEADNOTE

Without examining merits, a writ against a recovery certificate of Rs. 4,86,030 was disposed of by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, DVVNL Hamirpur, within four weeks, to be decided within the next four weeks after hearing, with coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Tribhuwan Shivhare challenged a recovery certificate dated 18 June 2022 for Rs. 4,86,030, seeking certiorari to quash it and a mandamus restraining realization of that amount. The Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Hamirpur was impleaded as respondent no. 5. Counsel for the distribution company stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery demand as alternate remedy

HOLDING

Without expressing any opinion on merits, a writ challenging a recovery certificate may be disposed of by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, to be decided in accordance with law after reasonable opportunity of hearing, with a time-bound stay of coercive action pending that disposal. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against a recovery certificate disposed of without a merits examination by relegating the consumer to an objection under Para 6.8 of the Supply Code before the Executive Engineer. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Petitioner given four weeks to file a Para 6.8 objection; the Executive Engineer to decide it within the next four weeks after hearing; coercive action stayed for eight weeks or until disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE DATED 18.6.2022 AND THE DEMAND OF RS. 4,86,030

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1